

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA, LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**COMPLAINANT’S MOTION FOR ENLARGEMENT OF TIME TO FILE REPLY TO
RESPONDENTS’ PETITION FOR ATTORNEY FEES**

Pursuant to 46 C.F.R. §502.102 and 46 CFR § 502.71 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant, SEAFAIR USA, LLC (“SeaFair”), by and through its undersigned counsel, hereby submits its Motion for Enlargement of Time to File Reply to Respondents’ Petition Regarding Attorney Fees (“Respondents’ Petition). Complainant respectfully requests that it be granted a seven (7) day extension to respond to Respondents’ Petition for the reasons set forth below.

I. BACKGROUND

Respondents’ Petition was filed on June 14, 2024. Under 46 CFR § 502.254(e), the opposing party may file a reply to a petition for attorneys’ fees within 20 days of the service date of the petition. Twenty (20) days from June 14, 2024, would be July 4, 2024. Thus, Complainant currently has until July 5, 2024, to submit its reply pursuant to 46 C.F.R. § 502.101 considering that July 4, 2024, is the last day of the prescribed time period and that day falls on a federal holiday. If granted the seven (7) day extension, Complainant’s reply would be due on July 11,

2024.

II. GOOD CAUSE

Respondents' Petition brings forth several arguments and supporting evidence which merit careful review. Complainant requests an extension because its counsel has faced several deadlines in multiple other actions that cannot be moved. Additionally, Complainant's counsel has recently been indisposed due to illness. An extension would allow counsel to properly and adequately address the arguments made in Respondents' Petition.

III. NO DELAY OR PREJUDICE TO RESPONDENTS

Granting this motion would neither unduly delay the proceeding nor unduly prejudice the Respondents. The ALJ's decision has already been made final [Dkt. 40] and 46 CFR § 502.254 does not provide for sur-reply. Whether Respondents' Petition is denied or granted seven (7) days later will not adversely impact Respondents.

IV. CONCLUSION AND CONFERENCE

In conclusion, Complainant respectfully asks that the ALJ extend the deadline to file a reply to Respondents' Petition by seven (7) days. The award requested in Respondents' Petition is a significant amount to Complainant, and Complainant seeks to submit a full and complete response. An extension is necessary to provide Complainant's counsel the time to properly review and reply to each of the arguments and the supporting evidence of the reasonableness of the hours claimed and the customary rates charged in the community where the attorneys practice. An extension would not delay the decision of the ALJ, nor prejudice the Respondents. Therefore, Complainants respectfully ask that a seven (7) day extension be granted.

Pursuant to 46 C.F.R. § 502.71(a), Complainant has conferred with counsel for the opposing party regarding this motion. Respondents have indicated that they cannot consent to the

motion, but do not object to the filing of the instant motion.

Respectfully Submitted,
LIANG + MOONEY, PLLC

/s/ Shanshan Liang
Shanshan Liang, Esq.
Fla. Bar No. 112991
2104 Delta Way, Suite #1
Tallahassee, FL 32303
Telephone: (850) 893-0670
Email: sliang@customscourt.com
Counsel for Complainant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 27th day of June 2024, the foregoing Motion for Extension of Time to File Reply to Respondents' Petition for Attorney Fees was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Alex M. Chintella
Presiding Administrative Law Judge
judges@fmc.gov

Ashley K. Kelley, Esq.
Telephone: (843) 720-4679
Email: Ashley.Kelley@wbd-us.com
Womble Bond Dickinson (US) LLP
5 Exchange Street
PO Box 999 (29402)
Charleston, SC 29401

Julius H. Bodie, Esq.
Telephone: (202) 857-4552
Email: Julius.Bodie@wbd-us.com
Womble Bond Dickinson (US) LLP
2001 K Street, NW
Suite 400 South
Washington D.C. 20006

/s/ Shanshan Liang
Shanshan Liang, Esq.